

The complaint

Mrs D complains that she was mis-sold home emergency cover in 2013 when she took out buildings and contents insurance with Esure Services Limited.

What happened

On 1 February 2013 Mrs D purchased a policy of insurance online with Esure via a price comparison website. When she took out her policy, she said she received a two page “key facts” document, which led her to believe she had home emergency cover for roof damage.

On 4 May 2019 the front, fibre glass flat roof covering the two, north facing dormer windows blew off Mrs D’s property and came to rest in her neighbour’s rear garden. The local fire service attended and sawed the detached roof into three sections in order to move it back into Mrs D’ rear garden.

Mrs D said the damage to her roof had occurred during a storm. So, she contacted the Esure emergency telephone number to request emergency assistance. But she was informed that she wasn’t covered for roof damage under her home emergency policy. In order to mitigate further damage to her property Mrs D therefore instructed an emergency roofer to undertake a temporary repair.

Mrs D was unhappy that her home emergency policy didn’t cover her for the damage to her roof. But Esure said her home emergency provider hadn’t offered cover for roof damage since 2011, which was when this cover was withdrawn.

Mrs D was unhappy about this and raised a complaint with Esure on 10 June 2019. She said roof cover had always been important to her. And she said she’d received documentation in 2013, at the time she purchased her policy, which clearly stated that her home emergency policy covered her for roof damage. She said her decision to take out insurance with Esure had been based on it providing home emergency roof cover. And, as roof cover was withdrawn in 2011, Mrs D said Esure had mis-sold her home emergency policy and misled her by providing incorrect out of date information about the extent of her cover.

Esure disputed Mrs D’s claim that she’d been misled or mis-sold her home emergency policy. It said, as she’d purchased her insurance policy online, it hadn’t given any advice on, or been involved in, the sale. And it said it hadn’t sent Mrs D any documents which stated roof damage was included in her home emergency cover. It thought she may have printed off an out of date home emergency policy documents from its website. And it explained that any updates to the cover Mrs D had purchased were posted to her at the relevant renewal date.

While, Esure didn’t uphold Mrs D’s complaint it refunded £23.97, which was the cost of the premiums Mrs D had paid for home emergency cover from 2014 until 2016, when a new policy booklet was sent to her. Esure explained that this refund was being provided as a gesture of goodwill and in efforts to resolve Mrs D’s complaint. It didn’t provide a refund for 2013 because, at the time Mrs D took out her insurance policy with Esure, her home emergency cover was free of charge.

Mrs D wasn't happy with Esure's response to her complaint and referred it to our service. She refuted Esure's comments that she had downloaded out of date home emergency documentation in error from its website. She maintained this had been provided to her by Esure in 2013 when her policy was inceptioned. And to resolve her complaint she wanted Esure to refund the insurance premiums she'd paid between 2013 and 2016.

Our investigator looked into what happened and thought Esure had dealt with Mrs D's complaint fairly. They said there wasn't enough evidence to show how Mrs D had come by out of date home emergency policy documents. And, as Esure had refunded the home emergency policy premiums Mrs D had paid for 2014 to 2016, there was nothing more it needed to do. But Mrs D disagreed with our investigator's view of her complaint and asked for it to be referred to an ombudsman.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

I'm sorry to hear about the difficulties Mrs D experienced here. I know she feels very strongly about this matter. And I appreciate the reasons she's brought this complaint to our service. I've already issued a jurisdiction decision confirming that our service can consider Mrs D's complaint as it's been referred within the time limits that apply. So, this decision will address the merits of Mrs D's complaint.

I understand Mrs D has raised a complaint with our service about how Esure dealt with her claim for roof damage under her buildings insurance policy. This is being dealt with separately by our service. So, I won't be commenting on how Mrs D's roof damage claim was settled in this decision.

I'd like to thank Mrs D and Esure for the level of detail contained in their submissions. I've read and considered all the information provided and, if I haven't specifically referred to a point that Mrs D or Esure have made it isn't because I haven't considered it. My decision will focus on what I think are the key issues, which is an approach that reflects the informal nature of this service.

Mrs D has told Esure and our service that she believes she was mis-sold a home emergency policy in 2013. She thought the policy she'd purchased provided home emergency cover roof damage. But in 2019, when she needed to make a claim after her roof sustained damage following adverse weather, she discovered that her home emergency provider had withdrawn roof cover in 2011. This was two years prior to Mrs D purchasing insurance with Esure. So, understandably she's concerned she's been misled as to the extent of her home emergency cover.

In reaching my decision I've considered how Mrs D's policy with Esure was sold to her. As I set out in the background to this complaint, she purchased her home insurance and home emergency policy with Esure online via a price comparison website on 1 February 2013. I'm satisfied the sale was conducted on a non-advised basis as Esure didn't recommend the policy or provide Mrs D with any advice as to the suitability of the cover she was selecting.

The fact that the sale was non-advised is crucial as this means Esure didn't need to make sure that the policy it sold was suitable for Mrs D's needs. It had a responsibility to provide information that was clear, fair and not misleading so Mrs D could make an informed decision on whether the policy was suitable for her. The responsibility for ensuring she had the cover she required therefore rested on Mrs D.

Here, Mrs D argues that she was misled by the documentation she received from Esure after taking out her policy. I've therefore looked carefully at the documentation Mrs D has provided our service to determine whether there is any evidence that Esure informed her that emergency roof cover was included in her policy in 2013.

I've seen a quotation from 2013. This is from when Mrs D incepted her policy with Esure. While this document refers to free home emergency cover being provided. It doesn't state roof cover is included under that part of the policy.

Mrs D has provided our service with a "key facts" document that states "*assistance is provided if a home emergency occurs due to damage to your roof*". She says this was provided to her by Esure in 2013 and is evidence that it informed her that home emergency roof cover was included in her policy.

I can see that this document isn't dated. And there's nothing to show it relates to the policy Mrs D purchased in 2013 – such as a reference or policy number. I haven't seen the full document as only part of it has been provided by Mrs D.

Esure doesn't dispute this is a document it has provided customers in the past. But it said this document is out of date and wasn't sent to Mrs D by it in 2013. It's told Mrs D and our service that the document Mrs D has provided our service isn't in the same format as the key facts pamphlet it sends its customers. So, it's raised the question of how Mrs D obtained the document she relies on here.

I've seen a copy of a key facts document Esure has provided, which is date stamped 6 October 2011. So, I'm satisfied that this document includes information about the extent of home emergency cover that applied in 2011. And, having compared this document to the one Mrs D has sent our service, I agree with Esure that the documents are formatted and written very differently to the one Mrs D relies on.

Mrs D hasn't been able to provide Esure with the original key facts pamphlet. And it isn't clear how she came by the document in question. But I haven't seen enough to satisfy me that Esure provided the document to Mrs D at the time she incepted her policy. It follows that I can't fairly find that Esure misled Mrs D by sending her an out of date key facts document.

Mrs D has argued that Esure should have notified her that the home emergency criteria had changed and that home emergency roof cover had been withdrawn. But, based on the evidence I've seen, I'm satisfied that roof cover was withdrawn in 2011. This was prior to Mrs D incepting her policy with Esure. So, Esure's home emergency criteria didn't change during the time Mrs D was on cover.

In efforts to resolve the complaint Mrs D made, Esure refunded the home emergency premiums from 2014-2016 as a goodwill gesture. This totalled £23.97. Mrs D has argued that the premium she paid in 2013 should be refunded as she says she only incepted her policy with Esure because she believed it offered home emergency roof cover.

I've thought about what Mrs D has said here. But I understand that the first year's home emergency cover was provided free of charge in 2013. And, as Mrs D has had the benefit of the home insurance policy she purchased in 2013, I'm satisfied there's nothing to refund from that year.

I should also add that I think Esure has acted fairly in refunding the home emergency premiums Mrs D paid. I say this because, as I'm satisfied Esure hasn't mis-sold Mrs D's policy to her, it isn't something I'd have asked it to do as part of this decision.

I appreciate that Mrs D isn't happy that the policy she purchased didn't provide the level of home emergency cover she wanted or needed. But, having considered the sales process, and the policy terms and conditions, I'm not satisfied Esure provided Mrs D with information about home emergency cover in an unfair or misleading way or in a manner that prevented her from being able to make an informed choice about whether the cover she'd purchased was suitable. This means I don't think the policy was mis-sold. And, because her home emergency insurance doesn't cover roof damage, I think the terms of that policy have been applied fairly.

I realise Mrs D will be disappointed with my decision. But it brings to an end what we, in trying to resolve her dispute with Esure informally, can do for her. I'm sorry we can't help Mrs D further on this.

My final decision

My final decision is that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs D to accept or reject my decision before 15 January 2021.

Julie Robertson
Ombudsman